

Chapter 12**THE SYSTEM OF GOVERNMENT IN PAKISTAN****Learning Outcomes**

By the end of this chapter students will be able to:

1. Give reasons for the need of a federal government.
2. Compare the formation of government at provincial and federal levels.
3. Compare the working of the three branches of government.
4. Describe the function of political parties in a democratic system.
5. Explain the relationship between the provincial and federal government in Pakistan.
6. Identify the steps of the law making process in Pakistan.
7. Construct a simple chart to show the relationship and processes between the different courts in Pakistan.
8. Discuss the importance and authority of Supreme Court over the High Court.
9. Identify a major issue and investigate how the law can help to solve the issue.
10. Understand the importance of the constitution.
11. Interpret some rights of citizens given in the constitution of Pakistan.
12. Identify behaviors that have been guided by the concerns for the law.
13. Use a problem-solving strategy to suggest ways to solve a national problem.
14. Participate in projects designed to help others in their local community.
15. Identify a national/ current issue and find the actions that the government is taking and suggest alternative actions to solve the problem.

THE SYSTEM OF GOVERNMENT IN PAKISTAN

In class IV we studied that each province has a provincial government to look after the affairs of the province. In the same way, to look after the affairs of the whole country, we have a federal government. The Constitution of Pakistan calls for the sharing of power between the two levels of government: the federal government and the provincial government.

The Constitution

The constitution is the most important law of the country. It:

- outlines the structure of the government;
- defines the powers and limits of each branch of the government;
- defines the relationship between the federal and provincial governments; and
- lists the rights and duties of the citizens and serves to protect the rights of all citizens.

The Main Features of a Federal Government

A federal system of government provides for power sharing between the federal government and the provincial government. The federal government has powers in certain key areas such as foreign policy, defence and finance. It also prepares the country's annual budget and development programs. The provincial government has power in areas such as education, health, law and order and development. The federal government also has power in these areas, however, it can only make national policies and handle the international aspects of these services. In case of any dispute between the federal government and the provinces, the Supreme Court of Pakistan, decides the case based on its interpretation of the law. The following are the federating units of Pakistan:

- The four provinces: Balochist: Khyber Pakhtunkhwa, Punjab and Sindh.
- The Federal Capital Territory Islamabad.
- Gilgit -Baltistan (G -B).



Merits of a Federal System of Government

The federal system of government ensures the unity of the whole country by taking care of areas such as defense and foreign affairs which are important to all the federating units. The provincial governments administer their own provinces as they can better use their resources to address the local needs and challenges. The federal and provincial governments work together to ensure the good of all the people of Pakistan.

The Structure and Functions of the Federal Government

Like the provincial government, the federal government has three branches:

- the legislative branch, which makes the laws for the country
- the executive branch, which enforces the laws of the country
- the judicial branch, which interprets the laws and provide justice

The Legislative Branch: The Parliament

In our country, the legislature is the Parliament. The Parliament has two Houses: the upper house and the lower house. The lower house is known as the “National Assembly” and the upper house as the “Senate”. The Parliament is very important because it makes the laws and can also change existing laws.

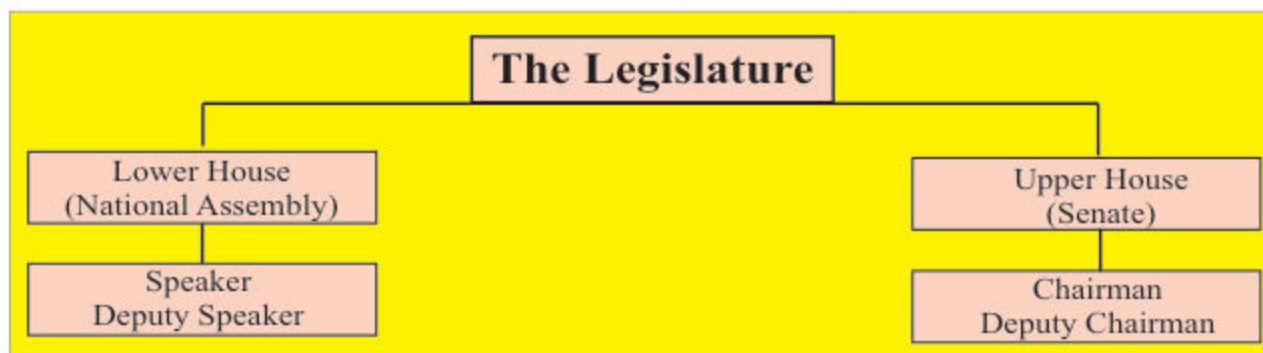


Fig.12.1 The Legislature

Activity:

Find out what the legislative bodies are called in the US, in England and in India.

The National Assembly

The National Assembly is also called the lower house. There are 342 Members of the National Assembly or MNAs. Political parties nominate their members to stand for elections to the National Assembly in different constituencies. The person who obtains the largest number of votes wins the election and becomes an MNAs for a period of five years. The political party



The National Assembly

with the greatest number of seats in the National Assembly forms the government and the leader of the party becomes the Prime Minister. All the members of the other political parties form the opposition. The opposition selects an MNA from among them to become the leader of the opposition.

Activity			
Find out the number of member and complete the table			
Territory	General seats	Women seats	Total Seats
Punjab			
Sindh			
Khyber Pakhtunkhwa			
Balochistan			
FATA			
Islamabad			
Total Seats			
Minorities			
Total Seats			

At the first meeting of the National Assembly, the MNAs elect the Speaker and the Deputy Speaker.

The functions of the National Assembly are to

- make or change existing laws;
- keep a check on the executive; and
- pass the annual budget and all finance bills.

MNAs discuss and debate issues and bills. These debates are controlled by the Speaker. The Speaker must be impartial, that is, the Speaker must allow everyone a chance to speak and not take sides when an issue or a bill is being discussed.

The National Assembly also keeps a check on the working of the executive. Members of the National Assembly can ask questions about what a ministry is doing to solve the problems of the people. The minister responsible for the ministry must tell them what they are doing.



Fig 12.2 Newspaper clipping of Budget being passed

The National Assembly also passes the annual budget for the country. The government needs money to run the different ministries and to develop the country. To get the money to meet these expenses the National Assembly puts taxes on the people.

Activity

Conduct a mock session of the passing of a bill into law.

The Senate

The Senate or upper house has 104 members. Each province has an equal number of representatives in the Senate. They are elected by the MPAs. Like the MNAs in the National Assembly, the Senators in the Senate discuss and debate issues and policies. These discussions are regulated by the Chairman or in the absence of the Chairman by the Deputy Chairman. The Senate reviews the laws passed by the National Assembly and either approves or rejects it.

Look at figure 12.3. It shows how a bill becomes a law.

Look at the pictures below to see how a bill becomes a law.



1. The bill is prepared



2. Bill is introduced in the National Assembly



3. Reviewed by the rules committee



4. Examined by a standing committee.



5. Debated on the floor of the National Assembly.



6. The bill is voted on, if it passes, the bill is...



7. Sent to the Senate



8. Examined by a standing committee



9. Debated on the floor of the Senate



10. The bill is voted on.
If it passes, the bill is...



11. Sent to President.
The President can sign
the bill or not. If it's signed...



12. THE BILL IS NOW LAW.

Activity

Find out the name of the Chairman and Deputy Chairman of the Senate.

The Executive

The executive branch of government carries out plans and policies to make sure the laws made by the Parliament are carried out. In Pakistan the Executive consists of the President, the Prime Minister, the cabinet and the public or civil service.

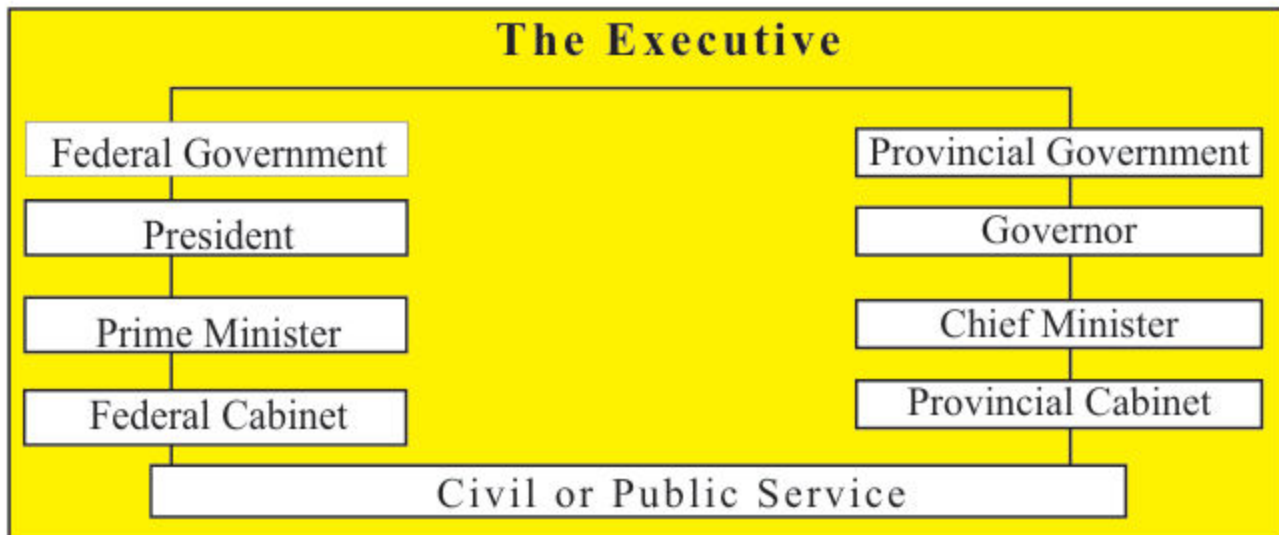


Fig 12.4 The executive branch of government

The President

The President is the Head of State. The President is the symbol of the unity of Pakistan. The President is elected by members of both the houses of Parliament and members of the Provincial Assemblies. The President's acts on the advice of the Prime Minister and the cabinet. The President functions include

- giving assent to bills so that they become law;
- greeting foreign leaders;
- presenting awards and medals to those who make outstanding contributions to Pakistan.

The Prime Minister

The Prime Minister is the head and leader of the federal government. The Prime Minister is also the leader of the national party in power. The Prime Minister chooses other members from his/her party to be responsible for the different ministries, like the ministry of finance, foreign affairs and defense.

The Cabinet

The Prime Minister and the ministers chosen form the cabinet. The cabinet discusses important issues and decides what the government's policies and plans should be.

The Public or Civil Service

The staff of each ministry are called public or civil servants. The civil servants take care of the day to day business of government. They also

- examine issues in their areas of responsibility;
- draw up proposals for new laws which ministers take to Parliament in the form of bills;
- prepare the budget for the ministry.

The Judiciary

The Supreme Court is the highest court of the country. It, along with the five High Courts and the many district and session courts, the judges and the Mohatasibs, form the judiciary.

The main work of the judiciary is to protect the rights of the citizens and to resolve disputes between them according to the law. It interprets the law and also modifies it if it is unjust or against basic human rights. Here we will learn about the work of each the courts.



1. The District or Sessions Courts

Each district has a district or sessions court. These courts are controlled by the High Courts of the province in which they are situated. In these courts, civil and criminal cases are heard and dealt with. Civil cases include disputes over property, marriage, etc, and criminal cases include murder, armed robbery, etc.

2. High Courts

There are five High Courts in the country; one each located at the provincial capitals of Karachi, Lahore, Peshawar and Quetta), and one at the federal capital Islamabad. These are only appeal courts, that is, they review the decisions of the district courts.



Sindh High Court

3. Supreme Court

There is only one Supreme Court for the whole country. Its headquarters are located at Islamabad, but special benches of it sit at all the provincial headquarters. The work of the Supreme Court is to



Supreme Court of Pakistan

- settle disputes between the federal and provincial Governments;
- settle disputes between the provinces;
- hear appeals against the decisions of the lower courts;
- take notice of and hear cases that are of importance to the citizens
- give legal advice to the federal government whenever needed.

The decision of the Supreme Court is final and must be obeyed by all.

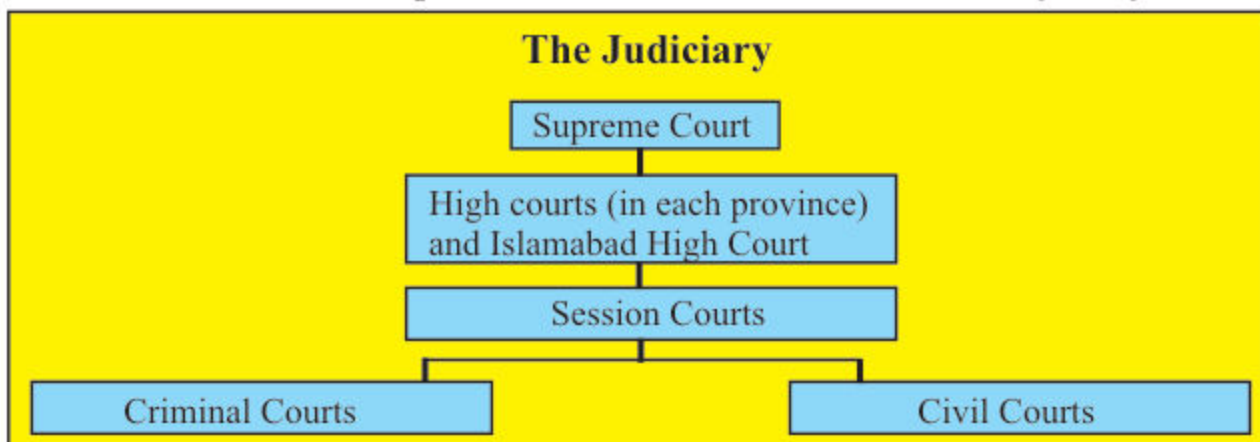


Fig. 12.5. The different levels of courts that form the judiciary of Pakistan

Activity

Write a paragraph saying why it is important for justice to be blind.

Rights and Responsibilities of Citizens

A citizen means a member of a country. Because we are all citizens of Pakistan, we have certain rights and responsibilities. We are given rights so that we can live with

dignity and freedom in our country. These rights are called fundamental rights according to the constitution of 1973. Look at the box below to see some of the rights you have as a citizen of Pakistan

Rights of Citizens

- You have the right to life and liberty
- You have the right to be told why you are being arrested and to be defended by a lawyer of your choice
- You have the right to the dignity of a human being, that is, no One can torture you or keep you as a slave or force you to work
- You are free to move and stay anywhere in Pakistan
- You are free to take up any profession or occupation
- You are free to speak and express your opinion
- You are free to profess, practice and propagate your religion
- You have the right to get, keep and sell property
- All citizens are equal before the law and to are entitled to equal protection by the law
- You have the right to preserve and promote your language and Culture.

Fig 12.6 Rights of citizens of Pakistan

While citizens have rights, they also have some responsibilities. Citizens must:

- respect the rights of others;
- participate in improving their communities; and
- use their knowledge and skills so as to develop their country.

Some responsibilities are made into laws. All citizens must:

- be loyal to Pakistan;
- pay taxes; and
- obey the laws of Pakistan.

Human Rights

The rights guaranteed in the law and upheld by the judiciary are our legal rights. They differ from country to country and can change as the laws of a country are changed.

In addition to legal rights, we also have human rights. Human rights are rights held by all people, all over the world, at all times. Human Rights are universal. Some human rights are similar to the legal rights we have, for example, freedom to speak and express our opinion.

However, even if a human right is not your legal right, you would still have it.

Our human rights are defined in a number of documents: the Universal Declaration of Human Rights 1948 and the Convention of the Rights of the Child 1989 are two important ones.

Activity

For each right given in figure 12.6. What is your responsibility?

Role of Political Parties

Political parties are organized groups of people who want to do something for the welfare of the country. To be able to do this they encourage citizens to join the party and from its members choose candidates to stand for elections. If they win the elections, they obtain the power to make and implement laws and policies for the welfare of the citizens and the country.

Some of the functions of political parties are given below:

- 1) To speak on behalf of and to do things for the people they serve.
- 2) To educate the people and mobilize the public opinion towards the solution of their problems.
- 3) When in opposition, they keep a close watch on the ruling party, in order to make sure it makes the right policies and takes the right actions.
- 4) At the time of a crisis, such as, a war, they help in public management.
- 5) They promote national integrity, because they bring together people from different regions, ethnicities, religions and gender on a common platform.

SUMMARY

In this chapter we have learnt the main reasons for a federal government, the structure and functions of the federal government, the working of the three branches of the federal government especially how laws are made, how they are implemented and how they are interpreted by the judiciary to ensure citizens their rights. We have also learnt that the constitution is the highest law of the land, that the constitution has a chapter that identifies the rights of citizens and that not only the law but in order live peacefully with others we must fulfill some responsibilities. The role of political parties in a democratic society are also discussed.

EXERCISE

A. Multiple choice questions

1. For every question, three answers are given; tick the correct one:
 - i. How many branches of government are there?
 - a. Two b. Three c. Five
 - ii. What is another name for the Senate?
 - a. Lower House b. Upper House c. The National Assembly
 - iii. What is the minimum age limit to become a parliamentarian in Pakistan?
 - a. 25 years b. 30 years c. 35 years
 - iv. How many High Courts are there in Pakistan?
 - a. Four b. Five c. Ten
 - v. What is the function of the National Assembly?
 - a. Implement the laws b. Interpret the laws c. Make the laws

B. Answer the following questions

- i. What is a constitution? Why is a constitution important for a country?
- ii. Describe the main features of a federal system of government.
- iii. Name three political parties and their current leader.
- iv. Identify the role of political parties in a democratic country.
- v. Identify the steps in the law making process in Pakistan.
- vi. Explain the relationship between the federal and provincial governments in Pakistan.
- vii. What authority does the Supreme Court have over the High Courts of Pakistan?
- viii. Describe the law and order situation in Pakistan and give three suggestions of how it can be improved.
- ix. Name the three branches of the federal government. List the work of each of the branches. Now compare it with what you learnt about the provincial government in class four.
- x. How are Members of the National Assembly (MNAs) elected?
- xi. What is the role of citizens in a democracy?
- xii. What are Human Rights? How do they differ from your legal rights as a citizen of Pakistan?
- xiii. Identify the current issue (e.g. illiteracy, law & order) and find out what the government is doing to solve it?

C. Make a table

In column A list five rights from the constitution of Pakistan that you think are important. In column B state why it is important. In column C state what would happen if citizens did not get this right.

D. Practical work

1. Make a chart to show the work of each court and the relationship between the different courts in Pakistan.
2. Identify a problem that children like you face. Identify the right you are being deprived of because of the problem. Find out what the government is doing to address this problem. Visit the office of an NGO or CBO to find out what they are doing about the problem. Identify ways to best solve the problem. Write a letter to the MPA telling him/her about the problem and suggesting what he/she can do to address it.
3. Citizens must know their country well. Make a booklet entitled “My Country”. Follow the instructions below to make your booklet.
 - Draw or paste a map of your country. On the map outline the federating units. Name each of them and write the capital cities.
 - Draw and colour the flag of your country.
 - Draw or paste a picture of a man, a woman and a child wearing the national dress.
 - Draw or paste a picture of three famous buildings. Write the name of the building and two sentences to explain why it is famous.
 - Draw or paste a ten rupee note. Explain the drawings on it.
 - Choose two important rights you have as a citizen. List two responsibilities we have with respect to the rights.
 - Write what you like best about being a citizen of Pakistan.
4. Make a scrapbook of picture and articles from the newspaper of citizens working to solve the problems of the people. Identify what you can do to solve problems in your community. Do at least one of the things you have identified. You could encourage others in your class to work with you.